

SENATE BILL 1444

By Pody

AN ACT to amend Chapter 330 of the Acts of 1901; as amended by Chapter 99 of the Private Acts of 1943 and Chapter 57 of the Private Acts of 2022; and any other acts amendatory thereto, relative to the Tenth School District of Wilson County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 330 of the Acts of 1901, as amended by Chapter 99 of the Private Acts of 1943, Chapter 57 of the Private Acts of 2022, and any other acts amendatory thereto, is amended by deleting Section 2 in its entirety and substituting instead the following:

Section 2. That the control and government of said Tenth School District of Wilson County, shall be vested in a Board of Education. The Board of Education shall be expanded from three (3) to five (5) members, three (3) of whom shall constitute a quorum for the transaction of business. The Tenth School District shall be divided into five (5) districts of equal population distribution. The School District shall present the boundaries of said districts to the Wilson County Election Commission no later than September 1, 2025.

One (1) member of the Tenth School District Board of Education shall be elected from each of the five (5) districts by qualified voters thereof. Board members shall be elected to staggered four-year terms so that every two (2) years, the terms of either two (2) or three (3) board members shall expire, with the odd-numbered districts expiring at the same time and the even-numbered districts expiring at the same time. Persons elected in the regular August elections shall take office on September 1 following the election and serve until their successors are duly elected and qualified.

During the transition from three (3) board members as provided under prior law, to the five (5) districts and board members as provided for in this act, all incumbent board members shall remain on the Board of Education until the expiration of their current terms. In order to maintain a board with staggered four-year terms, the odd-numbered districts shall be elected to two-year terms, and the even-numbered districts shall be elected to four-year terms. Thereafter, board members shall be elected to four-year terms as the term of each respective board member expires.

No member of the Board of Education shall serve more than two (2) terms.

In the event of vacancies on the Board of Education, such vacancy shall be filled by appointment or election made by the other members of said Board of Education, and the person so appointed or elected to fill such vacancy shall serve until the next general biennial August election, when an election shall be held to fill such vacancy. All members of said Board of Education, when appointed or elected, shall continue to serve until their successors are duly elected and qualified.

No one shall be eligible for election and qualification as a member of said Board of Education, except a resident or citizen of the district for which they are running, who shall be more than twenty-five (25) years of age. Members must reside in the district from which they are elected for more than one (1) year prior to the election. Said Board of Education shall organize by electing a Chairperson and Secretary, both of whom shall be members of the Board.

Said Board of Education shall be elected under the general election laws of the State of Tennessee, and they shall have all the powers and authority given them, both under this Act and under the general laws of the State of Tennessee. They shall especially have

the power and authority to elect all the teachers of the elementary and middle schools of the Tenth School District, fix their compensation, to control and manage the school buildings, grounds and property of said School District, and to otherwise govern, regulate and control the affairs of said School District.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Wilson County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.